

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #05	CCRB Case #: 201801612	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 02/25/2018 5:41 PM	Location of Incident: East 172nd Street and Washington Avenue	18 Mo. SOL 8/25/2019	Precinct: 42
Date/Time CV Reported Tue, 02/27/2018 2:15 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/27/2018 2:15 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Kevin Mcspedon	24156	963158	048 PCT
2. SGT Bryan Ortiz	03482	945272	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jason Treglia	05985	926222	048 PCT
2. POF Curtia Whitehead	31605	953566	048 PCT
3. SGT Nicholas McGarry	00429	949302	048 PCT
4. POF Sandra Martinez	04343	955139	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Kevin Mcspedon	Force: Police Officer Kevin Mcspedon used physical force against § 87(2)(b)	A . Unfounded
B . SGT Bryan Ortiz	Discourtesy: Sergeant Bryan Ortiz spoke discourteously to § 87(2)(b)	B . Exonerated
C . SGT Bryan Ortiz	Abuse: Sergeant Bryan Ortiz threatened § 87(2)(b) with the use of force.	C . Exonerated
D . SGT Bryan Ortiz	Force: Sergeant Bryan Ortiz tased § 87(2)(b)	D . Exonerated
E . SGT Bryan Ortiz	Abuse: Sergeant Bryan Ortiz searched the vehicle in which § 87(2)(b) was an occupant.	E . Unsubstantiated
F . POM Kevin Mcspedon	Abuse: Police Officer Kevin Mcspedon searched the vehicle in which § 87(2)(b) was an occupant.	F . Unsubstantiated

Case Summary

This complaint was filed by § 87(2)(b) on February 27, 2018 with the CCRB by phone.

On February 25, 2018, at approximately 5:41 p.m., § 87(2)(b) was an occupant in a vehicle with § 87(2)(b) and § 87(2)(b). The vehicle was stopped by PO Jason Treglia and PO Kevin Mcspedon from the 48th Precinct. PO Mcspedon grabbed § 87(2)(b) by the back of the neck and tried pulling him out of the car through the window (**Allegation A – Force: unfounded**). Sgt. Bryan Ortiz, a patrol supervisor at the 48th Precinct, responded to the location. Sgt. Ortiz told § 87(2)(b) to “get the fuck out of the car” (**Allegation B – Discourtesy, exonerated**). Sgt. Ortiz threatened to tase § 87(2)(b) (**Allegation C – Abuse of Authority, exonerated**). Sgt. Ortiz tased § 87(2)(b) (**Allegation D – Force, exonerated**). Sgt. Ortiz and PO Mcspedon searched the vehicle in which § 87(2)(b) was an occupant (**Allegations E-F – Abuse of Authority, unsubstantiated**).

§ 87(2)(b) was issued a moving summons and § 87(2)(b) was arrested during this incident.

NYPD body worn camera video captures this incident (BR01-03).

Findings and Recommendations

Allegation A – Force: Police Officer Kevin Mcspedon used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) was the driver of a vehicle which was stopped by PO Treglia and PO Mcspedon. § 87(2)(g)

§ 87(2)(b) was a passenger in the vehicle. Additional officers arrived after PO Treglia requested additional units to the location. PO Treglia requested additional units after § 87(2)(b) refused to provide his ID.

§ 87(2)(b) testified that multiple officers approached on the passenger side of the vehicle where he was seated (BR05). § 87(2)(b) was holding his cell phone in his hands which were in plain view in front of him. An officer tried to grab his cell phone but § 87(2)(b) pulled away. While the car door was still closed, PO Mcspedon reached through the passenger side window, grabbed § 87(2)(b) by the back of the neck, and tried to pull him through the window. § 87(2)(b) pulled his body away from PO Mcspedon.

PO Mcspedon’s body worn camera video, a clip of which is embedded below, and the testimony of PO Mcspedon and Sgt. Ortiz indicated that officers approached on the passenger side of the vehicle (BR06-08). The passenger side door was opened and PO Mcspedon told § 87(2)(b) to step out of the car. § 87(2)(b) did not move. PO Mcspedon leaned into the vehicle to forcibly take § 87(2)(b) out of the car. PO Mcspedon testified that he placed one hand on § 87(2)(b)’s arm and the other on his back and attempted to pull him out of the car. PO Mcspedon denied touching § 87(2)(b)’s neck. PO Mcspedon was unable to pull § 87(2)(b) out of the car because he held onto the car seat. Aside from grabbing § 87(2)(b)’s right arm, the specific actions taken by PO Mcspedon cannot be deciphered in the BWC video because the camera became shaky. § 87(2)(b) is heard stating that he is not going to get out of the car. The video does not show § 87(2)(b) being pulled out of the window or PO Mcspedon attempting to do so.



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PO Mcspedon's BWC video does not show him ever trying to pull § 87(2)(b) through the window. § 87(2)(g)

it is recommended that **Allegation A** be closed as **unfounded**.

Allegation B – Discourtesy: Sergeant Bryan Ortiz spoke discourteously to § 87(2)(b)

Allegation C – Abuse of Authority: Sergeant Bryan Ortiz threatened § 87(2)(b) with the use of force.

It is undisputed that Sgt. Ortiz used profanity toward § 87(2)(b) and threatened to tase him.

Sgt. Ortiz testified that he responded to the location after PO Treglia requested him to the location. PO Treglia reported to Sgt. Ortiz that they were involved in a car stop and the rear passenger, § 87(2)(b) was uncooperative, moving around in the back seat, and he suspected he might have a weapon. § 87(2)(b) was asked to exit the vehicle, refused to do so, and stated that he was not going to get out of the car. As described above, PO Mcspedon attempted to physically remove § 87(2)(b) from the vehicle and was unsuccessful. § 87(2)(b) repeated he was not going to get out of the car. Sgt. Ortiz told § 87(2)(b) to “get the fuck out” to bolster the authoritativeness of his command. Sgt. Ortiz also told § 87(2)(b) he would tase him to achieve compliance.

Officers must be courteous and respectful in their conduct with the public, NYPD Patrol Guide Procedure 203-09 (BR09).

An officer's use of profanity to gain compliance during what was becoming a tense standoff with an unruly civilian did not constitute misconduct, Deputy Commissioner of Trials case #79627/04 (BR10).

A conducted electrical weapon (CEW) should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons present. Active resistance includes physically evasive movements to defeat a member of the services' attempt to control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into custody, NYPD Patrol Guide Procedure 221-08 (BR11).

§ 87(2)(g)

. Therefore, it is recommended that **Allegations B-C** be closed as **Exonerated**.

Allegation D – Force: Sergeant Bryan Ortiz tased § 87(2)(b)

§ 87(2)(b) testified that an officer opened the door and Sgt. Ortiz said, “I’m going to shoot you with the taser.” § 87(2)(b) got out of the car. Officers told § 87(2)(b) to put his hands on top of the car and he complied. Officers attempted to place § 87(2)(b) in an armbar. § 87(2)(b) questioned why this was happening to him but was unable to physically do anything with his body while officers were holding him. Suddenly, the officers let go of § 87(2)(b) he started to turn around to face the officers, and was immediately tased by Sgt. Ortiz.

BWC camera video from PO Mcspedon and Sgt. Ortiz’ operator, PO Curtia Whitehead, show § 87(2)(b) exiting the vehicle. The relevant clips from these videos are embedded below (BR12-13). Immediately, PO Mcspedon and two plainclothes officers begin grappling with § 87(2)(b). § 87(2)(b)’s arms are seen upright, out of the hold of officers, and moving away from the officers. Based on the hardcoded BWC timestamp, eight seconds after § 87(2)(b) exits the vehicle, Sgt. Ortiz instructs his officers to let go of § 87(2)(b) and to get out of the way. The officers step away from him. § 87(2)(b) stands with his hands up in front of him at his sides. Sgt. Ortiz tells § 87(2)(b) to put his hands behind his back and immediately deploys his taser.



201801612_20180820_0924_DM.mp4



201801612_20180820_0924A_DM.mp4

Sgt. Ortiz testified that he made the decision to tase § 87(2)(b) at the moment he instructed his officers to step away. Sgt. Ortiz tased § 87(2)(b) because he was physically resisting by tightening his arms and pulling away when officers tried to handcuff him. Even though the officers were grappling with § 87(2)(b) Sgt. Ortiz chose to tase him because the combined effort of three officers was not working, § 87(2)(b) was bigger than the officers, and a struggle alongside a lane of vehicular traffic posed a safety concern for everyone present.

Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances, NYPD Patrol Guide Procedure 221-01 (BR14).

A conducted electrical weapon (CEW) should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons present. Active resistance includes physically evasive movements to defeat a member of the services’ attempt to control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into custody, NYPD Patrol Guide Procedure 221-08 (BR11).

§ 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as exonerated.

Allegation E – Abuse of Authority: Sergeant Bryan Ortiz searched the vehicle in which § 87(2)(b) was an occupant.

Allegation F – Abuse of Authority: Police Officer Kevin Mcspedon searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that marijuana was present inside the vehicle and that Sgt. Ortiz and PO Mcspedon searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) testified that he had less than an ounce of marijuana at the bottom of a backpack he had beside him in the backseat of the car. § 87(2)(b) denied that this marijuana had an odor or that any smell of marijuana was coming from him or the vehicle.

The video footage reveals that prior to the vehicle search, PO Treglia and PO Mcspedon voiced concerns about weapons to each other and to the officers who arrived to assist, but there is no conversation about marijuana before § 87(2)(b) is arrested.

Sgt. Ortiz and PO Mcspedon were consistent in describing that they approached the vehicle on the passenger side and § 87(2)(b) was asked to lower his window. When the windows were opened, both officers noted the smell of marijuana coming from inside the car. The officers knew the smell was marijuana based on their training and experience as police officers and experience making marijuana arrests. Sgt. Ortiz also noted that he is field test qualified. After § 87(2)(b) was removed from the vehicle, the vehicle was searched because the marijuana smell suggested marijuana was inside the car. Marijuana was found inside a backpack which § 87(2)(b) acknowledged belonged to him.

PO Mcspedon testified that he suspected § 87(2)(b) might have had a weapon because upon initiating the car stop, § 87(2)(b) did not cooperate with PO Treglia's request for his ID and was moving around in the back seat. PO Mcspedon also cited his suspicion that § 87(2)(b) had a weapon as a reason for the vehicle search.

As noted above, Sgt. Ortiz testified that PO Treglia and PO Mcspedon informed him that § 87(2)(b) might be in possession of a weapon and that he had tucked something under his car seat.

PO Treglia testified that he did not smell marijuana, however he was positioned on the driver's side which was opposite where § 87(2)(b) was seated. PO Treglia also suspected § 87(2)(b) had a weapon because he would not comply and he was moving around in the backseat (BR15).

The odor of marijuana emanating from a vehicle, when detected by an officer qualified with training and experience to recognize it, is sufficient to constitute probable cause to search the vehicle, People v Gaines, 54 A.D.3d 1120 (2008)(BR16).

A police officer's observation of conduct that demonstrates an actual and specific threat to a police officer's safety can provide the officer with a legitimate basis to conduct a limited search of a car to protect the officer's safety following a traffic stop. Searches must be supported by articulable facts showing a substantial likelihood of a weapon in the car so as to present an actual and specific threat to the officer's safety. Absent probable cause, it is unlawful for a police officer to invade the interior of a stopped vehicle once the suspects have been removed and patted down without incident, as any immediate threat to the officers' safety has been eliminated, People v Mouzon, 31 Misc. 3d 1242(A) (2011) (BR17).

§ 87(2)(g)

. Therefore, it is recommended that **Allegations E and F** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (BR18).
- Sgt. Ortiz has been a member of the service for 11 years and has one prior substantiated allegation. In case 201500811, the Board substantiated a threat of arrest allegation, recommended formalized training which the NYPD enforced. Sgt. Ortiz has three additional prior allegations § 87(2)(g).
- PO Mcspedon has been a member of the service for one year and this is his first complaint.

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation because § 87(2)(b) stated he was filing a lawsuit.
- The NYC Comptroller's Office responded to a request on August 1, 2018 indicating that no notice of claim was filed regarding this incident (BR19).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 5

Investigator: _____

	Signature	Print Title & Name	Date
Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date
Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date